Notification Waiver Determination

Macmahon – Aspect Engineering Solutions

Acquisition	Macmahon Holdings Ltd (**Macmahon**) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital of Aspect Engineering Solutions Pty Ltd and its wholly owned subsidiaries, including View Resources Pty Ltd and Aspect Vietnam Limited Liability Company (together, **Aspect**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	20 October 2026

Parties to the Acquisition	The acquirer, Macmahon, is an ASX-listed diversified contracting company, which services major resource companies across various commodity sectors. It provides surface and underground mining, and civil construction and infrastructure services to resources projects across Australia and Southeast Asia. Macmahon's services encompass mine development and materials delivery through to engineering, civil construction, on-site mining services, rehabilitation, site remediation, training and equipment maintenance, and refurbishment services. In 2024, Macmahon acquired Decmil Group Ltd (now Decmil Group Pty Ltd) (**Decmil**). Decmil is the civil infrastructure construction business of Macmahon. It provides engineering, construction and maintenance services for projects in the resources, infrastructure and energy sectors. Decmil focuses on large civil construction and non-process infrastructure projects. The target, Aspect, provides multi-disciplinary engineering, project delivery, professional services and operations and maintenance services. It primarily services gold, lithium and critical minerals clients in Western Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: a. there is limited horizontal overlap between Macmahon (through Decmil) and Aspect in the supply of engineering

	consultancy services and engineering construction services in Western Australia and Australia b. the parties' combined share of engineering consultancy services and engineering construction services in Western Australia and Australia is estimated to be low and the increment arising from the Acquisition is expected to be small c. there are alternative suppliers of engineering consultancy services and engineering construction services in Western Australia and Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act